

		arbitrate (<i>see Malone, supra</i>, 26 Cal.App.4th at p. 1559), Plaintiff must show the delegation clause <i>itself</i> is substantively unconscionable. Plaintiff does not challenge any term of the delegation clause, instead arguing that the Arbitration Agreement <i>as a whole</i> is unconscionable because it exempts certain claims from arbitration. "[A]ny claim of unconscionability must be specific to the delegation clause. [Citation.]" (<i>Tiri v. Lucky Chances, Inc., supra</i>, 226 Cal.App.4th at p. 244, citing <i>Rent-A-Center, supra</i>, 561 U.S. at p. 73.) In sum, the court finds no procedural or substantive unconscionability. Any remaining arbitrability issues must be decided by the arbitrator. (<i>Henry Schein Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 65 [holding that "[w]hen the parties' contract delegates the arbitrability question to an arbitrator, the courts must respect the parties' decision as embodied in the contract"].) <u>Stay</u> The proceeding is hereby STAYED pending resolution of the arbitration proceeding. (See 9 U.S.C., § 3.) The court hereby sets an Arbitration Status Conference for <u>June 24, 2027</u>, at 09:00 am in this Department. Defendants to give notice.
6	Adjemian vs. Gallo	Defendant Rafael Gallo moves for leave to file a Cross-Complaint. For the following reasons, the motion is GRANTED. Code Civ. Proc. § 428.10 provides that a party may file a cross-complaint setting forth: "[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." There are two types of cross-complaints: compulsory cross-complaints and permissive cross-complaints. A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc. § 426.30.) A cross-complaint is "related" to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc. § 426.10(c).) All other cross-complaints are permissive cross-complaints.